

ALITO, J., dissenting

when it made major changes in Title VII. At that time, the three Courts of Appeals to reach the issue had held that Title VII does not prohibit discrimination because of sexual orientation,³⁸ two other Circuits had endorsed that interpretation in dicta,³⁹ and no Court of Appeals had held otherwise. Similarly, the three Circuits to address the application of Title VII to transgender persons had all rejected the argument that it covered discrimination on this basis.⁴⁰ These were also the positions of the EEOC.⁴¹ In enacting substantial changes to Title VII, the 1991 Congress abrogated numerous judicial decisions with which it disagreed. If it also disagreed with the decisions regarding sexual orientation and transgender discrimination, it could have easily overruled those as well, but it did not do so.⁴²

After 1991, six other Courts of Appeals reached the issue of sexual orientation discrimination, and until 2017, every single Court of Appeals decision understood Title VII's prohibition of "discrimination because of sex" to mean discrimination because of biological sex. See, e. g., *Higgins v. New Balance Athletic Shoe, Inc.*, 194 F. 3d 252, 259 (CA1 1999); *Simonton v. Runyon*, 232 F. 3d 33, 36 (CA2 2000); *Bibby v. Philadelphia Coca Cola Bottling Co.*, 260

³⁸ See *Williamson v. A. G. Edwards & Sons, Inc.*, 876 F. 2d 69, 70 (CA8 1989) (*per curiam*), cert. denied, 493 U. S. 1089 (1990); *DeSantis v. Pacific Tel. & Tel. Co.*, 608 F. 2d 327, 329–330 (CA9 1979); *Blum v. Gulf Oil Corp.*, 597 F. 2d 936, 938 (CA5 1979) (*per curiam*).

³⁹ *Ruth v. Children's Med. Ctr.*, 1991 WL 151158, *5 (CA6, Aug. 8, 1991) (*per curiam*); *Ulane v. Eastern Airlines, Inc.*, 742 F. 2d 1081, 1084–1085 (CA7 1984), cert. denied, 471 U. S. 1017 (1985).

⁴⁰ See *Ulane*, 742 F. 2d, at 1084–1085; *Sommers v. Budget Mktg., Inc.*, 667 F. 2d 748, 750 (CA8 1982) (*per curiam*); *Holloway v. Arthur Andersen & Co.*, 566 F. 2d 659, 661–663 (CA9 1977).

⁴¹ *Dillon v. Frank*, 1990 WL 1111074, *3–*4 (EEOC, Feb. 14, 1990); *LaBate v. Postal Service*, 1987 WL 774785, *2 (EEOC, Feb. 11, 1987).

⁴² In more recent legislation, when Congress has wanted to reach acts committed because of sexual orientation or gender identity, it has referred to those grounds by name. See, e. g., 18 U. S. C. § 249(a)(2)(A) (hate crimes) (enacted 2009); 34 U. S. C. § 12291(b)(13)(A) (certain federally funded programs) (enacted 2013).